

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) on 05/09/2022 filed two complaints with the Spanish Agency for Data Protection directed against the users of the social network "Twitter" mentioned in the URLs indicated in said complaints. The reasons on which these complaints are based are as follows: "Publication of a private video in which I appear without my consent. The video has gone viral and I have not given permission for either the editing of the video or its distribution. They were independent takes for a work purpose, not for publication on social networks without my consent since I am not even the one who distributed the video. This fact was reported on Twitter and a response was received without any measures being taken."

In the first of the complaints received, it is noted that the video was published on the social network "Twitter" on 02/09/2022 by the user "****USER.1". The video consists of a montage of successive takes in which the complainant looks at the camera and comments on how many glasses of wine and alcohol he/she is drinking throughout a night, showing the consequent evolution that alcohol intake produces in his/her state.

Through the second complaint, the complainant "adds" documentation to the previous complaint. According to the complainant, "it consists of more videos and photographic montages like the one published by the defendant in this file (***USER.1). In this case, other users of the social network Twitter have used the same video or images from that video without my consent. The description of the facts is the same as that sent in previous complaints." The complaint details the URLs that lead to the reported publications (22 videos and 2 images).

Along with the complaints, the following documentation is provided, among others:

- Screenshot corresponding to the profile of the user "Twitter" "XXXXX", "****USER.1". It states the date "2 Sept.", the text "****TEXT.1" and an image of the video in question that corresponds to a photo of the complainant. It states that the video has a duration of 38 seconds and has had "1.7 M views".
- Screenshots corresponding to the profiles of Twitter users who disseminated the video or images. In most of them, the dates of 02, 03, or 04/09/2022 are noted; texts such as (...) etc.; and an image of the video in question that corresponds to a photo of the complainant. It states the duration of the video (38 seconds) and the number of views in each case (from 30 to 443.8 thousand views).

SECOND: On 05/09/2022, in accordance with Article 65 of the LOPDGDD, the first of the complaints mentioned in Background First was admitted for processing. The Admission Agreement was notified to the complainant on the same date.

THIRD: On 06/09/2022, two new complaints from the complainant were received by the Agency. The complaints are directed against new users of "Twitter", "Instagram", and "Youtube", who also disseminated the video in question with comments similar to those previously mentioned, which are added to those included in the previous complaints, as well as against the responsible parties and users of the websites indicated, where the video in question was also inserted.

Among these last users is a user of the website "****URL.1", identified as "****USER.2", who published the video in question on 03/09/2022, accessible at the URL "****URL.2".

The General Subdirectorate for Data Inspection accessed the thread generated by the user "****USER.2" with the title "****TITLE.1", verifying that, on the same date of 03/09/2022, other users of the website "****URL.1" made comments regarding the repeated video. The user identified as "****USER.3" made a comment at 13:49 hours, with the text "Typical friend-pet." However, according to the screenshots obtained by the Inspection Services, this user did not include the video, nor a link to it, nor any image of the complainant.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General

Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

The result of the investigative actions carried out is noted in the Proven Facts Third to Tenth.

On the other hand, within the framework of these preliminary investigation actions, on 21/10/2022, the AEPD issued an "Agreement to adopt a provisional measure" by which B.B.B. was ordered to remove the content subject to the complaint inserted on the website "****URL.1", accessible through the URL "****URL.2" (video about "XXXXX" from the user "****USER.2").

In this agreement, which was notified on 10/11/2022, the following was expressly stated:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

"1. Request B.B.B.(***URL.1) to remove the aforementioned content related to the claimant from the web addresses from which it is accessible, within a maximum period of 5 calendar days, avoiding, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.

2. Request B.B.B.(***URL.1) to ensure that the removal or modification of the content is carried out in such a way that it prevents third parties from accessing and disposing of the original, while guaranteeing its preservation for the purpose of safeguarding evidence that may be necessary during the course of the police or administrative investigation or the judicial process that may be initiated.

3. Request B.B.B.(***URL.1) to inform this Spanish Agency for Data Protection about the execution of the measure within a maximum period of 5 calendar days."

Subsequently, on 07/12/2022, a request was made to C.C.C. (responsible for the website "****URL.1") for the removal of the content published at the URL "****URL.2".

A response was received on 21/12/2022, indicating that the <<"thread" on the platform with the URL: ***URL.2) has been deleted (understood as the "thread" the initial message and all responses to it) on the same day the letter was received (21/12/2022) at 13:15 (GMT)>>.

On 11/01/2023, the Inspection Services verified that the content accessible through the URL "****URL.2" had been removed. On the same date, it was verified that the page "****URL.1" was not available.

Finally, in order to clarify how the video made its way to social media after its recording, the acting inspection requested the claimant on two occasions to identify the author of the recording. These information requests were notified on 28/03/2023 and 13/06/2023, but no response was received.

In the Preliminary Investigation Report, the Inspection Services of the AEPD highlight that the video in question went viral after its publication on 02/09/2022 on Twitter by the user "****USUARIO.1" and that, due to this wide dissemination, it can be found on dozens of sites and can be easily located with tags such as "XXXXXXXX" or "XXXXXX". According to the Inspection Services, it is a replica of the videos that went viral on social media since 2021 with the subject "Hello, I am.... and this is my first drink/cocktail/beer/shoot/etc." which show the evolution of the protagonist after consuming several alcoholic beverages. Dozens of result pages can be found using the search engine "Google".

FIFTH: On 21/07/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against D.D.D., with NIE ***NIE.1, for the alleged infringement of Article 6 of the GDPR, classified in Article 83.5.a) of the same Regulation, and qualified for prescription purposes as very serious under Article 72.1.b) of the LOPDGDD.

In the opening agreement, it was determined that the corresponding sanction, without...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/14

regardless of what results from the instruction, would be 2,000 euros (two thousand euros) for the

indicated infringement.

It was also warned that such infringement, if confirmed, may lead to the imposition of measures, according to Article 58.2 d) of the GDPR.

On the other hand, in said agreement, it was noted that the provisional measure adopted on 21/10/2022 has lost its validity, insofar as the website "****URL.1" is no longer available, having removed the contents subject to the proceedings. It was therefore deemed unnecessary to confirm it in connection with the aforementioned agreement to initiate sanctioning proceedings.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the party being claimed, after requesting a copy of the evidence on which the initiation of the procedure is based and the proof of the communications that were sent to them (with this proposal for resolution, an index of documents is provided and the procedure is made known, in accordance with the provisions of Article 89.2 of the LPACAP), submitted a written statement of allegations in which they request the filing of the proceedings or, subsidiarily, the reduction of the fine, based on the following considerations:

1. Violation of the principle of the presumption of innocence, considering that IP addresses are not valid for determining the active subject and due to the alterability of the posts made in "Discourse." After denying being the person identified as "****USUARIO.3," they warn that the IP addresses associated with them correspond to January and February 2023, while the events took place in September 2022, so the AEPD should certify the IP of the day and time when the comment was written on "****URL.1."

They also point out that criminal and administrative liability is personal and must be considered that several people live in their household who have access to the same internet line, which may also have been used by third parties (friends and family), without ruling out a possible hacking.

For this reason, they argue that the IP address is not sufficient to subjectively delimit the responsible party for an infringement, as declared by the Supreme Court in Judgment number 987/2012, of 03/12/2012.

On the other hand, they also deny having uploaded the video in question or links to it on "****URL.1" and state that the author of a post can be easily altered from a database, adding that the mentioned website used the "Discourse" forum system, which is open-source and has extensions that allow a thread or message to be changed. It can also be changed using a direct query in its database (PostgreSQL).

For this reason, they request the audit log of changes in the database that guarantees that the administrator or administrators of the forum system did not alter any message, noting that it is mandatory to maintain that unalterable log.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/14

Furthermore, it requests that simple screenshots not be admitted as evidence, as they can also be altered with any browser that has access to inspection tools.

Since the AEPD accessed the message after the thread was created, its authorship may have been modified, which is common on "****URL.1".

2. Violation of the principle of culpability, as facts are attributed based on being the owner of the line, without proving that other actions were taken.

3. Violation of the principle of legality.

In this regard, it considers, on one hand, that the claimant consented to the recording of the video for a work-related purpose, as they have stated. Additionally, they appear in the video showing themselves on camera, even mentioning their name.

On the other hand, it argues that the dissemination achieved by the video was even the subject of news in several newspapers, reaching the level of public or journalistic interest, so it must be assessed whether there is a legitimate interest in informing about it through a forum.

It highlights, moreover, that there is a lack of specificity in the facts, as neither the URL of the video is specified, nor the message number in which it was published within that thread, nor the link, nor whether the video was uploaded directly to ***URL.1 (which could not be done) or if only a link was published, specifying whether that link was to the video or to the complete message, nor whether it was the website itself that inserted the video or not.

And there is a lack in determining who uploaded the video. In this regard, it points out that it has not processed images, as it neither uploaded nor downloaded the video, but rather there was a link to another website, which does not constitute data processing.

4. It alleges defenselessness and violation of the accusatory principle, resulting from the AEPD's actions with third parties (responsible for the website "****URL.1") without their intervention from the initial phase.

5. Finally, it invokes the principle of proportionality as the determination of the fine did not consider that the damage was neutralized with the closure of the forum, nor the dissemination that the video achieved which decreases culpability.

It requests access to the file, that an audit log of its data on the site "****URL.1" be conducted, and that the website's responsible parties be asked to inform whether the forum was conducted on "Discourse" and whether it was possible to alter the messages and/or their authorship.

SEVENTH: In the allegations made regarding the opening of the procedure, D.D.D. stated that the author of a forum can be easily altered from a database, so they requested the audit log of changes in the database, which, as indicated, guarantees that the administrator or administrators of the forum system did not alter any message.

In this regard, the responding party was informed that the proposed evidence was not deemed necessary for the resolution of the present procedure, in which there are already sufficient elements to assess the facts, especially considering that the website "****URL.1" was closed by its responsible party, which complicates this Agency's ability to conduct further verifications.

EIGHTH: On 06/05/2024, a resolution proposal was made in the sense that the Director of the Spanish Agency for Data Protection proceed to archive the present proceedings, followed against the responding party for an alleged infringement of Article 6 of the GDPR.

The notification of this resolution proposal was duly delivered to the responding party on 22/05/2024.

In that notification, a period was granted to formulate allegations and the file was made available to the responding party, offering them the possibility of obtaining copies of the documents that comprise it.

The granted period elapsed without any written allegations regarding the resolution proposal being received by this Agency.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On 05/09/2022, A.A.A. filed a complaint with the AEPD against a user of the social network "Twitter" for the publication, on 02/09/2022, of a video without their consent. The video consists of a montage of successive shots in which the claimant looks at the camera and comments on how many glasses of wine and alcohol they are drinking throughout a night, showing the consequent evolution that alcohol consumption produces in their state. The image of the claimant was clearly visible in that recording, and they could be recognized by third parties. This video went viral after its publication on 02/09/2022 on Twitter. Due to that wide dissemination, it could be found on dozens of sites and easily located with a search engine using tags such as "XXXXXXX" or "XXXXXXX".

SECOND: On 06/09/2022, the claimant filed two new complaints with the AEPD against new users of "Twitter", "Instagram", and "YouTube", who also disseminated the video mentioned in Proven Fact One, as well as against several responsible parties and users of web pages, in which the video in question was also inserted.

Among these last ones, there is a user of the website "****URL.1", identified as "****USUARIO.2", who published the video in question on 03/09/2022, accessible at the URL "****URL.2". This user started a thread on the website "****URL.1" with the title "****RÓTULO.1". The publication of the video on "****URL.1" is made by placing a link to the social network "Twitter" where the video was originally published by a user of this social network.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/14

By the General Subdirector of Data Inspection, access was granted to the thread generated by the user “***USER.2” with the label “***LABEL.1”, verifying that, on the same date of 03/09/2022, other users of the website “***URL.1” made comments regarding the repeated video. The user identified as “***USER.3” made a comment at 13:49 hours, with the text “Typical friend-pet”. However, according to the screenshots obtained by the Inspection Services, this user did not include the video, nor a link to it, nor any image of the claiming party.

THIRD: The Inspection Services of the AEPD verified that the website “***URL.1” is a forum focused on various hobbies such as video games, cinema, literature, etc., where the content is generated by the users themselves.

FOURTH: On 08/09/2022, information was requested from the Public Business Entity Red.es (REDES) regarding the entity responsible for the domain “***URL.1”. REDES reported that the holder is E.E.E., with an address at ***ADDRESS.1, with the email address ***EMAIL.1 and phone number ***PHONE.1; and that the person for administrative, technical, and billing contact is F.F.F., residing at ***ADDRESS.2.

FIFTH: On 03/10/2022, information was requested from the entity Orange Espagne, S.A.U. regarding the ownership of the line ***PHONE.2. According to this entity's report dated 19/10/2022, the line belongs to C.C.C., with an address at ***ADDRESS.3.

SIXTH: Through requests from the Inspection Services of the AEPD dated 03/10, 17/11, and 21/11/2022, information was requested from the responsible parties of “Wespec”, hosting and domain provider, regarding the ownership of the email address ***EMAIL.2, identifying data and contacts of the domain “***URL.1” and the ownership and billing address of this domain. This entity responded on 25/11/2022 as follows:

- The identifying and contact data of the holder of the domain “***URL.1” registered in their systems:
- Name: E.E.E.
- Surname: E.E.E.
- Company: “XXXXXX”
- Email: ***EMAIL.1
- Postal address: ***ADDRESS.1.
- Phone: ***PHONE.1

According to the mentioned entity, the above data was provided by “XXXXXXX”.

- Holder and billing address of the domain “***URL.1”:
- Name: D.D.D.
- Surname: D.D.D.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/14

- Company: XXXXXXXX
- Email: ***EMAIL.2
- Postal address: ***ADDRESS.2
- Phone: ***PHONE.2

SEVENTH: On 07/12/2022, information was requested from D.D.D. regarding the entity that manages the website “***URL.1”.

In their response, it is indicated that the website only retains the strictly necessary information for the proper functioning of the website, that it does not store information, personal data, or photographs of individuals, registered or third parties, and that the possibility of uploading such files to the server is

prohibited.

Regarding the photographs and videos subject to the proceedings, it was reported that they come from another website (<https://www.twitter.com>) and that it is the users of "****URL.1" who have placed links to said content. If the content of those links is deleted at the source, it no longer appears on "****URL.1".

EIGHTH: On 16/01/2023, in order to determine the authorship of the publications, information was requested from D.D.D. regarding the IP address from which the user "****USER.3" published the claimed content on 03/09/2022, at 13:49, as well as the identifying registration data of this profile. This same information was requested regarding two other users who participated in the same thread related to the video subject to the proceedings.

On 28/01/2023, a response was received indicating that the website does not retain any personal data, beyond the IP address and an email address. For the case of the user "****USER.3", the IP address ***IP.1 and the address "****EMAIL.3" were provided. The same information was provided regarding the other two users for whom inquiries were made (IP address and email address).

It was also added that "the website does not register the IP address of each individual message for logistical and data protection reasons, but does register the last one from which the user accessed it," which for the mentioned user corresponds to the one provided.

Subsequently, a request was made for the details of the date and time recorded in their systems corresponding to the assignment of the previously reported IP address.

In the response letter, dated 13/02/2023, D.D.D. communicated that they have decided to close the website "****URL.1" and provided the IP addresses assigned to the consulted users on the dates 28/01/2023, at 16:27:43 (Spanish time), and 13/02/2023, at 01:48:22 (Spanish time). Regarding the user "****USER.3", the following details were provided:

- The IP address ***IP.1 assigned to the profile "****USER.3" corresponds to the date 28/01/2023, at 16:27:43 (Spanish time).
- The IP address of "****USER.3" on 13/02/2023, at 01:48:22 (Spanish time) was ***IP.2.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/14

NINTH: In response to the request made by the Inspection Services, Telefónica de España, S.A.U. provided this Agency, on 14/02/2023, with the identifying data and address of the holders of the assigned IP addresses indicated, on the specified dates and times:

- On the date of 28/01/2023, between 16:00:00 and 17:00:00 hours, the holder of the IP ***IP.1 is C.C.C., with NIE ***NIE.1 (hereinafter, the claimed party) and residing at ***ADDRESS.3.
- On the date of 13/02/2023, between 01:00:00 and 02:00:00 hours, the holder of the IP ***IP.2 is the same person previously mentioned.

Furthermore, Telefónica de España, S.A.U. provided different identities for each of the IP addresses indicated by D.D.D. in relation to the other two users of the consulted website (the name, address, and DNI of the individuals to whom the IP address corresponding to 28/01/2023 was assigned for each of the users do not match those of the individuals to whom the IP associated with the same user on 13/02/2023 was assigned).

TENTH: On 09/03/2023, the identifying data (name, surname, and NIF) and address of the person with the username "****USER.3" on the website "****URL.1" who used their internet connection on 28/01/2023, between 16:00 and 17:00 hours, and on 13/02/2023, between 01:00 and 02:00 hours, were requested from C.C.C. Although the respective request was notified on 16/03/2023, no written response has been received by this Agency.

ELEVENTH: In the context of the preliminary investigation proceedings, on 21/10/2022, the AEPD issued an "Agreement for the adoption of a provisional measure" ordering B.B.B. to remove the content subject to the complaint posted on the website "****URL.1", accessible through the URL "****URL.2" (video about "XXXXXX" from the user "****USER.2").

Subsequently, on 07/12/2022, D.D.D. was requested to remove the content published at the aforementioned URL.

On 21/12/2022, D.D.D. informed that the “thread” on the platform with the URL: ***URL.2) has been removed (understood as the initial message and all responses to it) on the same day of receipt of the letter (21/12/2022) at 13:15 (GMT).

On 11/01/2023, the Inspection Services verified that the content accessible through the URL “***URL.2” had been removed. On the same date, it was verified that the page “***URL.1” was no longer available.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Image as Personal Data

The physical image and voice of a person, according to Article 4.1 of the GDPR, are personal data as they make the person identifiable, and their protection, therefore, is the subject of said GDPR:

“‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;”

The report 139/2017 from the Legal Advisory Office of this Agency states that “the image as well as the voice of a person is personal data, just as any information that allows determining, directly or indirectly, their identity (...)”

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is the subject of said Regulation.

Thus, the processing of a person's image is subject to data protection regulations. Article 4.2 of the GDPR defines the concept of “processing” of personal data.

“Any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, comparison or interconnection, limitation, erasure, or destruction.”

The inclusion on a website of the image and voice of a person, which identifies or makes them identifiable, along with their name, constitutes processing of personal data and, therefore, the entity or person carrying it out is obliged to comply with the obligations imposed on the data controller by the GDPR and the LOPDGDD.

The person who processes personal data must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to complaint, the only legitimizing ground is generally consent. And it is the person who uploads the images to a

11/14

web page that must demonstrate that it has such consent or another legitimizing cause.

II

Absence of Evidence

Prior to examining the alleged infringement, it is necessary to examine the circumstances claimed regarding the absence of certain evidence that proves the authorship of the claimed facts.

In the present case, a complaint was filed against several social media users for the dissemination of a video that shows the image and voice of the complaining party or photographs taken from that video,

along with comments that, in some cases, referred to their name. The complaints were also directed against responsible parties and users of various web pages, where the video in question was also posted.

Among these is the website "URL.1", where a user identified as "USUARIO.2" published the video in question on 03/09/2022, accessible at the URL "URL.2", taken from the Twitter user "USUARIO.1".

On the same date of 03/09/2022, other users of "URL.1" made comments in the thread generated by the user "USUARIO.2" with the label "RÓTULO.1", including the video itself, a link to it, or some image taken from the video itself. Among them is a person identified by the username "USUARIO.3" who made a comment at 13:49 hours, with the text "Typical friend-pet".

To identify the person acting under that username and determine the authorship of the claimed facts, the Inspection Services of the AEPD requested the responsible party of "URL.1" information about three users of the website, including the creator of the thread and the user "USUARIO.3", specifically the IP address from which they published the claimed content on 03/09/2022, at the corresponding time for each of them, as well as the identifying registration data of those profiles. The three users referred to in the information request had participated in the same thread related to the video subject to the proceedings.

In the response received, the responsible party of the aforementioned website informed that the IP address of each individual message is not recorded, but the last access made by the user in question is; and that no personal data is retained, except for that IP address and an email address. For the three consulted users, they provided an IP address corresponding to the date of 28/01/2023 (date of the response) and an email address.

Subsequently, the same responsible party of the website was requested to provide the details of the date and time recorded in their systems corresponding to the assignment of the reported IP addresses. In a new written response, dated 13/02/2023, the assigned IP addresses to the consulted users were provided, corresponding to the day 28/01/2023, at the C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/14

16:27:43 (Spain time), and on 13/02/2023, at 01:48:22 (Spain time). In relation to the claimed party (user "USUARIO.3"), the following details are provided:

. The IP address ***IP.1 assigned to the profile "USUARIO.3" corresponds to the date 28/01/2023, at 16:27:43 (Spain time).

. The IP address of "USUARIO.3" on 13/02/2023, at 01:48:22 (Spain time) was ***IP.2.

Based on such data, in response to the request made by the Inspection Services, Telefónica de España, S.A.U. provided the AEPD with the identifying data and address of the holders of the IP address assignments indicated, during the specified periods. In relation to user "USUARIO.3", the operator provided the identifying data and address of the holder of the indicated IP address assignments, on the specified dates and times:

. On the date of 28/01/2023, between 16:00:00 and 17:00:00 hours, the holder of the IP ***IP.1 is C.C.C., with NIE ***NIE.1 (hereinafter, the claimed party) and residing at ***DIRECCIÓN.3.

. On the date of 13/02/2023, between 01:00:00 and 02:00:00 hours, the holder of the IP ***IP.2 is the same person previously mentioned.

It is also noteworthy that Telefónica de España, S.A.U. provided different identities for each of the IP addresses associated by the responsible party of the website "URL.1" to user "USUARIO.2" on the mentioned dates, with one person accessing with that username on 28/01/2023 and another different person accessing the website on 13/02/2023, also with that username, both having different addresses. The same occurred regarding the other consulted user (the name, address, and ID number of the person to whom the IP address corresponding to 28/01/2023 for that user was assigned do not match those of the person to whom the IP associated with the same user on 13/02/2023 was

assigned).

Only in the case of the third consulted user did the identity of the person reported by the aforementioned operator coincide for the two specified dates.

However, given the results obtained, the information about IP addresses assigned to these users cannot be treated as reliable, so the outcome of these verifications does not allow us to ensure that all accesses made to the website with the username "****USUARIO.3" were indeed made by the claimed party.

It is also important to highlight that the IP addresses provided by the responsible party of "****URL.1" do not correspond to the moment when the events took place, that is, these IP addresses were not assigned to the users who participated in the forum, in the thread created by "****USUARIO.2", on the date 03/09/2023.

The request for information made to the responsible party of "****URL.1" requested the IP address from which these users published the claimed content, but the website administrator informed that the IP address of each individual message is not recorded and that only the IP address of the last access is retained.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
13/14

Therefore, it has not been possible to ascertain whether under the username "****USER.3", on that date in September 2022, C.C.C. or an unknown third party acted, as the specific IP address assigned at that exact moment was not available, which would have provided an opportunity to identify the specific individuals involved in the post related to the claimant under the verified usernames.

It should also be noted that, according to the checks highlighted by the Inspection Services of this AEPD, the website was not available on 11/01/2023, a date prior to the accesses reported by the website's responsible party, which supposedly took place on 28/01 and 13/02/2023.

Consequently, it is appropriate to conclude that there is no certainty regarding the authorship of the facts analyzed in the contested resolution, allegedly committed by the respondent under the username "****USER.3", so there is no factual basis to attribute a violation of data protection regulations or to sanction them for the same, leading to the filing of the proceedings.

It is taken into account that the website "****URL.1" was closed by its responsible party, which complicates this AEPD's ability to carry out further checks.

In any case, although it was initially considered that the respondent had incorporated the content subject to the complaint into the website "****URL.1", prompting the investigation conducted and the opening of this sanctioning procedure, a new examination of the evidence obtained has allowed us to conclude that the person who intervened in the thread "****TITLE.1" under the username "****USER.3" merely made a comment at 13:49 hours, with the text "Typical friend-pet", without incorporating the video in question or a link to it, nor any image of the claimant.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings against C.C.C., with NIE ****NIE.1, for an alleged violation of Article 6 of the GDPR.

SECOND: TO NOTIFY this resolution to C.C.C.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision

of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/14